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Convention on the Rights of Persons with Disabilities

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Committee on the Rights of Persons with Disabilities

Initial report submitted by Chad under article 35 of the Convention, due in 2021*

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Introduction

1. The present report provides an overview of the situation as regards the rights of persons with disabilities in Chad, pursuant to article 35 (1) of the Convention on the Rights of Persons with Disabilities. The Convention was ratified on 20 June 2019 in accordance with Act No. 0024/PR/2018 authorizing its ratification by the President of the Republic. This initial report covers the period from 2019 to 2022.

2. The present report was drawn up following extensive national consultations with all stakeholders conducted by the Interministerial Committee for Monitoring the Implementation of International Human Rights Instruments and coordinated by the Ministry of Justice and Human Rights. The Committee is made up of representatives of various ministries, the National Human Rights Commission and civil society organizations. The National Union of Associations of Persons with Disabilities in Chad comprises 61 organizations of persons with disabilities, of which 27 are based in N'Djamena and 34 are based outside the capital. Its work covers all categories of impairment: motor, sensory (visual and hearing) and mental impairments, as well as leprosy. This report was produced with the technical and financial support of the Country Office of the Office of the United Nations High Commissioner for Human Rights.

3. These consultations reflect the Government's desire to involve human rights mechanisms more consistently and effectively in the process of promoting, protecting and implementing the rights of persons with disabilities.

4. In this document, the Government outlines the main advances made in ensuring respect for the rights of persons with disabilities. While acknowledging the challenges to be met and the obstacles to be overcome, the Government reaffirms its intention to continue striving to give effect to the provisions of the Convention.

The present report covers the following areas: general information on the country's legal and institutional framework (I), general measures (II) and specific rights (III).

I. General information on the country's legal and institutional framework

5. This section deals with the constitutional provisions, international and regional instruments ratified by Chad and national laws that protect the rights of persons with disabilities. Since the ratification of the Convention, significant improvements have been made to the normative and institutional framework for the promotion and protection of the rights set out in the Convention.

1. Constitutional guarantees

6. Since gaining independence in 1960, Chad has repeatedly proclaimed its commitment to ensuring respect for human rights in its successive constitutions. This commitment is emphasized in the Constitution of 4 May 2018 and in the revised Transitional Charter of October 2022. The preamble to the Constitution reaffirms the principles enshrined in the Universal Declaration of Human Rights of 1948 and all the related conventions to which Chad is a party.

7. The preamble to the Constitution proclaims the commitment of the Chadian people to the following universal values and principles:

- Equal rights and duties for all
- Freedom and security for every individual
- The prohibition of any illegal command or order
- The right to freedom of movement
- The inviolability of the home and secrecy of correspondence

- The principle that no offence or penalty can exist outside the law
- The non-retroactive nature of the law
- The right to a fair hearing by a tribunal
- Freedom of opinion, belief and conscience
- Freedom of expression, the press, assembly and association
- The right to organize and the right to strike
- The right to a healthy environment
- Protection of the environment, etc.

2. International and regional instruments

8. As a member of the United Nations and the African Union, Chad has ratified a series of international conventions and regional instruments on the protection and promotion of human rights.

(a) At the international level

- The Convention on the Rights of Persons with Disabilities, ratified on 20 June 2019
- The International Convention on the Protection of the Rights of All Migrant Workers and Members of Their Families, ratified on 15 October 2018
- The International Convention for the Suppression of the Financing of Terrorism, ratified on 22 November 2018
- The United Nations Convention against Transnational Organized Crime, ratified on 27 July 2009
- The Protocol to Prevent, Suppress and Punish Trafficking in Persons, Especially Women and Children, supplementing the United Nations Convention against Transnational Organized Crime, ratified on 27 July 2009
- The Optional Protocol to the Convention on the Rights of the Child on the sale of children, child prostitution and child pornography, ratified on 28 August 2000
- The Optional Protocol to the Convention on the Rights of the Child on the involvement of children in armed conflict, ratified on 28 August 2012
- The Protocol to Prevent, Suppress and Punish Trafficking in Persons, Especially Women and Children, supplementing the United Nations Convention against Transnational Organized Crime, ratified on 10 August 2009
- The memorandum of understanding, signed on 10 September 2014, between the Government of Chad and the United Nations Country Team in Chad on the transfer of children involved in the armed forces or armed groups
- The Convention on Protection of Children and Cooperation in respect of Intercountry Adoption, ratified on 29 May 2009

(b) At the regional level

- The Protocol to the African Charter on Human and Peoples’ Rights on the Rights of Persons with Disabilities in Africa
- The African Charter on Human and Peoples’ Rights
- The African Charter on the Rights and Welfare of the Child
- The Protocol on the Statute of the African Court of Justice and Human Rights, which provided for the merger between the Court of Justice of the African Union and the African Court on Human and Peoples’ Rights
- The Protocol to the African Charter on Human and Peoples’ Rights on the Rights of Women in Africa

- The Organization of African Unity Convention Governing the Specific Aspects of Refugee Problems in Africa
- The Multilateral Cooperation Agreement to Combat Trafficking in Persons, Especially Women and Children, in West and Central Africa
- The judicial cooperation agreement between Chad, Mali and Niger of 9 May 2017
- The agreement on judicial cooperation to secure common borders between Chad, Libya, the Niger and the Sudan, of 9 August 2018
- The mutual assistance agreement between States members of the Central African Economic and Monetary Community (CEMAC), of 28 January 2004
- The judicial cooperation agreement between States members of CEMAC, of 28 January 2018
- The non-aggression, solidarity and mutual assistance pact between States members of CEMAC, of 28 January 2018
- Human rights commitments within the framework of the Economic Community of West African States and the International Organisation of la Francophonie

3. National legislation

9. At the national level, various legal instruments have been promulgated in recent years, gradually strengthening the protection of the rights and freedoms enshrined in the Constitution and the above-mentioned international instruments. These national instruments include the following laws and regulations:

- Act No. 003/PR/2021 of 9 March 2021 on the establishment, organization and functioning of a specialized judicial unit responsible for the prosecution of terrorist acts and related offences
- Act No. 028/PR/2020 of 31 December 2020 on the Code of Civil, Commercial and Social Procedure
- Act No. 003/PR/2020 of 20 May 2020 on the prevention and punishment of terrorist acts in the Republic of Chad
- Act No. 012/PR/2018 of 20 June 2018 ratifying Ordinance No. 006/PR/2018 of 30 March 2018 on combating trafficking in persons in the Republic of Chad
- Act No. 029/PR/2015 of 21 July 2015 prohibiting child marriage
- Ordinance No. 002/PR/2020 of 14 February 2020 on civil status in the Republic of Chad
- Act No. 006/PR/2002 of 15 April 2002 on the promotion of reproductive health
- Act No. 019/PR/2020 of 31 December 2020 on the fight against HIV/AIDS and sexually transmitted infections and the protection of the rights of persons living with HIV/AIDS
- Ordinance No. 004/PR/2020 of 4 August 2020 establishing the National Solidarity Fund for Vulnerable Persons
- Act No. 035/PR/2019 of 5 August 2019 establishing universal health coverage in Chad
- Act No. 027/PR/2020 of 31 December 2020 on asylum in the Republic of Chad
- Act No. 005/PR/2015 of 4 February 2015 on the protection of consumer rights
- Act No. 009/PR/2014 of 10 February 2014 on combating cybercrime
- Act No. 007/PR/2014 of 14 February 2014 on the protection of personal data
- Act No. 006/PR/2014 of 10 February 2014 creating the National Agency for Computer Security and Electronic Certification

- Act No. 02/PR/2018 of 4 May 2018 on the adoption of the Constitution of the Fourth Republic
- Act No. 019/PR/2017 of 28 July 2017 on the prison system
- Act No. 032/PR/2016 of 12 November 2016 regulating the right to strike in public services
- Ordinance No. 015/PR/2018 of 31 May 2018 on the powers, organization and functioning of the Supreme Court
- Ordinance No. 018/PR/2018 of 7 June 2018 on the powers, organization and functioning of the criminal investigation police
- Act No. 001/PR/2017 of 8 May 2017 on the Criminal Code
- Act No. 012/PR/2017 of 14 July 2017 on the Code of Criminal Procedure
- Act No. 024/PR/2018 of 30 October 2018 authorizing the President of the Republic to ratify the Convention on the Rights of Persons with Disabilities
- Ordinance No. 020/PR/2018 of 7 June 2018 on the charter for political parties
- Act No. 026/PR/2018 of 22 November 2018 on the powers, organization and functioning of the National Human Rights Commission
- Ordinance No. 002/PR/2020 of 14 February 2020 on civil status in the Republic of Chad
- Ordinance No. 023/PR/2018 of 27 June 2018 establishing the regulations for associations
- Ordinance No. 012/PR/2018 of 22 May 2018 on gender parity in elections and appointments to office in the Republic of Chad

10. In addition to these legislative measures, the Government has also adopted a number of regulations, including:

- Decree No. 498/PR/PM/MEP/07 of 28 June 2007 on the reorganization of the National High Commission for Demining, which established a directorate for awareness-raising and assistance to victims of mines
- Decree No. 580/PR/PM/MAS/2000 establishing a directorate for the reintegration of persons with disabilities, within the Ministry of Family and Social Affairs
- Decree No. 2121/PR/MSPSN/2020 of 14 April 2020 implementing Act No. 006/PR/2002 of 15 April 2002 on the promotion of reproductive health
- Decree No. 1521/PR/MFPPESN/2019 establishing the terms of application of Act No. 007/PR/2007 of 9 May 2007 on the protection of persons with disabilities
- Decree No. 136/PR/MCFAS/94 of 6 June 1994 on the establishment of the National Day of Persons with Disabilities
- Decree No. 1471/PR//MJCDH/2018 of 1 August 2018 on the adoption of the policy for the justice sector
- Decree No. 1010/PR/PM/MJDH/2014 of 4 September 2014 setting up courts and establishing their territorial jurisdictions
- Order No. 009/PR/MJCDH/DG/DDH/2019 of 15 January 2019 on the appointment of representatives of associations for the defence of human rights and other bodies to the National Human Rights Commission
- Order No. 115/PR/PM/MASSNE/SE/SG/DE/2013 of 10 October 2013 establishing working groups
- Order No. 064/PR/PM/MFFSN/SG/DGASSN/DE/2016 of 5 September 2016 establishing child protection committees in all regions of Chad
- Order No. 114/PR/PM/MIMASSNF/SE/SG/DE/2013 of 10 October 2013 establishing a steering committee for the mapping and evaluation of the child protection system

- Order No. 22/PR/MFPPESN/DG/DGTASN/DE/2019 of 14 May 2019 establishing a national coordination body for child protection in Chad
- Order No. 377/MEN/DG/95 of 4 December 1995 on the exemption of students and parents with disabilities from enrolment fees
- Order No. 060/PR/MJCDH/DG/DDH/2019 of 2 May 2019 establishing offices for access to law and justice under the Appeals Court
- Presidential Directive No. 008/PR/EMP/2013 of 10 October 2013 on respect for the minimum age of recruitment into the Chadian National Army
- Circular No. 005/MJ/IG/2013 of 30 October 2013 on failure to comply with the time limit for police custody by criminal investigation officers and legal officials

4. Strategies and policies

11. A policy entitled "Vision 2030: The Chad We Want" has been formulated with a view to setting Chad on a path towards structural transformation in the areas of social affairs, governance and the rule of law, economic affairs and the environment. The policy comprises three national development plans, the first of which covers the period 2017–2021. It emphasizes the Government's commitment to building social cohesion and national unity (pillar 1), promoting good governance and accountability (pillar 2), diversifying the economy (pillar 3) and improving the quality of life of all citizens (pillar 4). The "Vision 2030: The Chad We Want" policy and the 2017–2021 National Development Plan are perfectly aligned with the 2030 Agenda for Sustainable Development of the United Nations and Agenda 2063 of the African Union.

12. The National Gender Policy, adopted on 20 November 2017, and the corresponding five-year national action plan for the period 2019–2023, adopted in December 2018, set out areas of focus and concrete measures to reduce the number of cases of physical and/or sexual violence against women and girls aged 15 years and over.

13. A national social protection strategy aimed at ensuring equitable access to basic social services was adopted by the Government on 27 July 2015.

14. The National Health Policy for the period 2016–2030 is being pursued with the aim of ensuring the good health and well-being of all people, at all ages.

5. Institutional framework

(a) Executive branch

15. Chad is a decentralized unitary State. It has 23 provinces, 212 departments and 414 communes. Executive power is vested in the transitional President, who ensures compliance with the Charter and international treaties and agreements and ensures, by his or her arbitration, the proper functioning of the public authorities and the continuity of the State.

(b) Legislative branch

16. Legislative power is exercised by the Transitional National Council, which passes laws and is responsible for overseeing government action, evaluating public policies and monitoring the implementation of laws. The members of the Transitional National Council are appointed by decree. There are 197 members drawn from representative groups, corporations, political parties, women's organizations, youth organizations, politico-military signatories to the Doha Peace Agreement, the diaspora, the organization of traditional chiefs, civil society organizations, persons with disabilities and resource persons.

(c) Judicial branch

17. In Chad, the judicial branch is independent of the executive and legislative branches. There is a single judicial system, with the Supreme Court at the top of the hierarchy in judicial,

administrative and constitutional matters (Constitution, arts. 157 and 168, and Transitional Charter, art. 105). Judicial power is vested in the Supreme Court, courts of appeal, the Military High Court, lower courts and magistrates' courts.

18. The Supreme Court is the final court of appeal in judicial, constitutional and administrative matters and in matters of high treason. It rules on cassation appeals in all matters, in accordance with Ordinance No. 15/PR/2018 of 31 May 2018 on the powers and functioning of the Supreme Court. It is the only court with the power to rule on appeals against decrees and decisions brought on the grounds of abuse of power. It gives its opinion on bills before they are discussed by the Council of Ministers. Lastly, the Supreme Court has exclusive jurisdiction over disputes relating to presidential, legislative and local elections.

19. To bring justice closer to the people, courts of appeal have been established in the cities of N'Djamena, Moundou, Abéché, Mongo and Sarh.

(d) Economic, Social, Cultural and Environmental Council

20. The Economic, Social, Cultural and Environmental Council is a consultative body established pursuant to the Constitution of 1996 and retained in the Constitution of the Fourth Republic of 2018. It issues opinions on economic, social, cultural and environmental questions referred to it by the President of the Republic or the President of the National Assembly. It may also choose to consider any issue relating to economic, social, cultural or environmental development on its own motion and submit its conclusions to the President of the Republic.

21. It is made up of 25 members representing various sectors, including the rural population, cultural groups, persons with disabilities, women, trade unions, the banking sector, non-governmental organizations (NGOs) and the business world.

(e) High Authority for Media and Broadcasting

22. Established as a replacement for the High Council for Communication, the High Authority for Media and Broadcasting is composed of nine members, including a communication professional, independent figures, representatives of private and public media outlets, audiovisual technicians, members of the judiciary and a leading figure from the world of culture, arts and literature. Its purpose is to ensure compliance with ethical rules and legislation in the field of information and communication, to regulate access to and the practice of the profession of journalism and to safeguard freedom of the press and the pluralistic expression of opinions within the framework of respect for national cultural values, public order and citizens' privacy. It is also responsible for regulating communication between public authorities, media outlets and the public, ensuring equal access to media for political parties and equitable access to public media for associations, and issuing technical opinions and recommendations on issues relating to the field of information.

(f) National Human Rights Commission

23. According to article 171 of the Constitution of 4 May 2018, the National Human Rights Commission is an independent administrative authority for the promotion and protection of human rights and fundamental freedoms, with legal personality and financial autonomy. This provision is reinforced by article 2 of Act No. 028/PR/2018 of 22 November 2018 on the powers, organization and functioning of the National Human Rights Commission. Act No. 028/PR/2018 is largely based on the Paris Principles and provides for a pluralist composition. The Commission comprises 11 members: independent figures, and members of professional media organizations, the trade union for members of the judiciary, associations for the defence of human rights, law faculties at public universities, workers' trade unions (one member), the bar association (one member), organizations for the defence and promotion of women's rights (one member) and organizations of persons with disabilities (one member).

24. Under articles 4–7 of Act No. 028/PR/2018, the responsibilities of the National Human Rights Commission include:

- Promoting human rights in general and the rights of women, children, persons with disabilities, persons living with HIV and other vulnerable persons in particular, through information, education and communication initiatives throughout the country
- Raising awareness of human rights among members of the public, including the members of the civil service and civil society, through information campaigns, education, training, publications, lectures and debates, and any other appropriate means
- Raising awareness of human rights and fundamental freedoms among political, administrative, military, traditional and religious authorities
- Helping to promote the principles of equality and non-discrimination enshrined in the Constitution and regional and international human rights instruments
- Helping to develop and implement human rights education programmes
- Monitoring the situation as regards human rights and fundamental freedoms during election periods and helping to create a climate of trust and security conducive to peaceful elections

25. By Order No. 009/PR/MJDH/DG/DDH/2019 on the appointment of representatives of associations for the defence of human rights and other bodies to the National Human Rights Commission, of the Minister of Justice and Human Rights, an ad hoc committee in charge of the Commission selection process was set up on 15 January 2019.

26. The selection process resulted in 11 people being elected to the National Human Rights Commission by their peers. The outcome was confirmed by Decree No. 1156/PR/2019 of 15 August 2019 of the President of the Republic. The swearing-in ceremony took place on 12 February 2020 before the Supreme Court. The Commission is the only major national institution with a high proportion of women: 5 of the 11 members, or 45.45 per cent, are women. Members are elected for a four-year term, renewable once.

27. The National Human Rights Commission has a budget that is financed by subsidies from the State and partners. It is still in the process of being set up but has conducted some activities, including visits to prisons and monitoring of the human rights situation.

II. General provisions of the Convention

A. Definition of the concept of persons with disabilities

28. Article 2 of Act No. 007/PR/2007 of 9 May 2007 on the protection of persons with disabilities defines a person with disabilities as any person who, as a result of a congenital or acquired physical, sensory or mental impairment, is unable to ensure by himself or herself, wholly or partly, the necessities of a normal individual or social life. As a Party to the Convention, which it ratified on 20 June 2019, the State intends to comply with the definition set out therein.

29. Article 3 of Act No. 007/PR/2007 provides a detailed list of types of impairment, stating that there are five categories of persons with disabilities:

- Persons with a physical or motor impairment
- Hard-of-hearing persons
- Persons with a mental impairment
- Persons with a visual impairment
- Persons with multiple disabilities

30. Article 1 of the Convention states: “Persons with disabilities include those who have long-term physical, mental, intellectual or sensory impairments which *in interaction with various barriers* may hinder their full and effective participation in society on an equal basis with others.”

31. Despite efforts to comply with international standards, there are still some shortcomings when it comes to achieving the full and effective participation of persons with disabilities in society on an equal basis with others.

B. Definition of reasonable accommodation

32. National law incorporates the concepts of spatial planning, facilitation of the movement of persons with disabilities, and accessibility. Under article 20 of Act No. 007/PR/2007 of 9 May 2007 on the protection of persons with disabilities, contracting authorities are required to take these aspects into account in the construction of public buildings. Measures are taken to improve the accessibility of existing buildings in line with the spirit of the Convention.

33. Article 20 of Act No. 007/PR/2007 states that public contracting authorities must provide access ramps and lay down rules for building and road construction to facilitate the access and movement of persons with disabilities.

C. Promoting the full enjoyment of rights

34. Basing its approach on the general principles and obligations set out in the Convention, including the principle of the full enjoyment of all human rights and fundamental freedoms, the Government recognizes that persons with disabilities have all the civil, political, economic, social and cultural rights that are guaranteed by national law to all individuals and groups, without discrimination or exclusion. The country’s legal framework protects the rights of persons with disabilities and ensures that they are able to exercise them.

35. The Government has taken legislative and practical measures to ensure the full enjoyment by persons with disabilities of numerous rights, including the rights to life, health, education, economic and social integration, equality and non-discrimination, mobility, individual autonomy and accessibility.

36. The Government has also adopted programmes, mechanisms and projects to ensure that persons with disabilities are able to fully enjoy their fundamental rights. These include the 2017–2021 National Development Plan, which includes a component on improving quality of life, especially among young persons and persons with disabilities, by ensuring access to productive, decent and sustainable employment.

37. Through a project to improve the quality of life and promote the inclusion of children and young persons with disabilities and vulnerable persons in Chad, implemented with support from the French Development Agency, the Government intends to promote inclusion and improve quality of life for persons with disabilities by removing barriers to access to services, social participation and economic development.

38. In 2018, more than 123 million CFA francs (CFAF) were granted to a consortium made up of the NGO Handicap Santé and Maison Notre Dame de la Paix de Moundou, for a surgery programme. The programme is aimed at women and children with disabilities and accident victims. An agreement on the subject was signed by the French Development Agency and the Ministry of Public Health in October 2018.

39. Children with physical impairments can attend primary, secondary and higher education establishments. The Government has provided financial, human and material support to schools for children with visual or mental impairments. Pursuant to Act No. 007/PR/2007 of 9 May 2007, article 9 of Implementing Decree No. 1521 of 11 September 2019 grants free enrolment in public schools to children with disabilities and children whose parents have disabilities.

40. In addition, in order to promote the full participation and involvement of persons with disabilities in the management of public affairs through real representation in the various major State institutions, the Government has allocated seats to persons with disabilities. Ordinance No. 022/PR/2018 on the powers, composition, organization and functioning of the Economic, Social, Cultural and Environmental Council and Act No. 028/PR/2018 of 22 November 2018 on the powers, organization and functioning of the National Human Rights Commission provide that one seat on the Council and the Commission, respectively, should be allocated to a representative of disability rights organizations. Pursuant to the resolution adopted during the inclusive and sovereign national dialogue of 2022, four seats on the Transitional National Council have been allocated to persons with disabilities.

41. Lastly, the Government has sought to create favourable conditions for the establishment of disability rights organizations in the country. This right has even been enshrined in article 7 of Act No. 007/PR/2007 of 9 May 2007 on the protection of persons with disabilities. The article in question clearly states that persons with disabilities may form associations or groups of associations and that they may issue opinions on matters relating to reintegration. 32. Thanks to these provisions, there are 61 organizations of persons with disabilities in Chad, of which 27 are based in N'Djamena and 34 are based outside the capital. They were recognized by the National Union of Associations of Persons with Disabilities in Chad in 2018. Today, there are four umbrella organizations of persons with disabilities: the National Union of Associations of Persons with Disabilities in Chad; the National Confederation of Organizations of Persons with Disabilities in Chad; the Network of Associations of Persons with Disabilities in Chad; and the National Union of Organizations of Persons with Visual Impairments in Chad.

III. Specific rights

Article 5
Equality and non-discrimination

42. The principles of equality and non-discrimination are enshrined in article 14 of the Constitution of 4 May 2018, as amended by Act No. 017/PR/2020 of 14 December 2020. According to that article, the State must ensure that all persons are equal before the law, irrespective of their origin, race, sex, religion, political opinion or social status. It has a duty to ensure the elimination of all forms of discrimination against women and to protect the rights of women in all areas of private and public life.

43. Reference is made to the specific situation of persons with disabilities in the context of the Convention as follows: "The State and the autonomous local authorities shall create conditions and institutions that ensure and guarantee access to education for children and the promotion of gender and persons with disabilities." These constitutional provisions are reinforced by Act No. 007/PR/2007.

Article 6
Women with disabilities

44. The Government, acting through the Ministry of Gender and National Solidarity, has set up a programme for the socioeconomic empowerment of women involving a simplified financing procedure for women and persons with disabilities. A national programme for the inclusion of persons with disabilities is being adopted.

IV. Specific situation of women and children with disabilities

Article 7
Children with disabilities

45. According to the second general population and housing census, there are 53,310 children with disabilities in Chad, representing 0.99 per cent of the total population. There are no recent studies indicating the proportion of children with disabilities in Chad. With the third general population and housing census and the agriculture census currently under way, the Government and its technical and financial partners have taken the necessary steps to obtain data on children with disabilities disaggregated by sex, using the Washington Group on Disability Statistics tool.

Article 31
Statistics and data collection

46. Chad has ratified regional and international instruments relating to children's rights. To give effect to these instruments, title 2 of the Constitution and title 3 of the Transitional Charter guarantee fundamental rights and freedoms to all, without discrimination.

47. The Government runs education, employment and therapy programmes for persons with disabilities. In this context, children with physical impairments can attend primary, secondary and higher education establishments. The Government has provided support to schools for children with hearing, visual and mental impairments. The Government also provides medical care for children with disabilities.

Breakdown of hard-of-hearing students by grade

	Sixth (12–13 years)		*Fifth (13–14 years)*		*Fourth (14–15 years)*		*Third (15–16 years)*		*Second (16–17 years)*		*First L (17–18 years)*		*Final A (18–19 years)*		*Total*	
Grade	*Boys*	*Girls*	*Boys*	*Girls*	*Boys*	*Girls*	*Boys*	*Girls*	*Boys*	*Girls*	*Boys*	*Girls*	*Boys*	*Girls*	*Boys*	*Girls*
2018/19	13	4	11	3	12	1	10	1	5	0	5	1	0	0	56	10
2019/20	13	4	11	3	12	1	10	1	5	0	5	1	18	2	74	12

Source: 2018/19 and 2019/20 annual reports of the special secondary school for hard-of-hearing students.

Article 8
Awareness-raising

48. The Ministry of Justice and Human Rights is responsible for implementing the Government's human rights policy measures, especially those relating to persons with disabilities. The Ministry of Women, the Family and Child Protection, the Ministry of Gender and National Solidarity and the Ministry of Public Health are involved in promoting and protecting the rights of vulnerable women and protecting persons with disabilities.

49. By Decree No. 580/PR/PM/MAS/2000 of 5 December 2000, the Government created a directorate for the advancement of persons with disabilities within the Ministry of Women, the Family and Child Protection. This directorate is responsible for:

- Leading, coordinating, monitoring and evaluating the activities of the departments under its authority
- Developing and implementing programmes and projects to support persons with disabilities
- Dealing with legal and social protection for persons with disabilities
- Disseminating national and international legal instruments relating to persons with disabilities

- Assisting with the ratification of international legal instruments relating to persons with disabilities
- Promoting community-based reintegration and rehabilitation of persons with disabilities
- Developing partnerships with organizations working for persons with disabilities
- Monitoring and evaluating the activities of organizations of persons with disabilities (associations, groups and NGOs)
- Developing an information and awareness-raising programme on the causes and consequences of disability
- Defining standards and procedures for the establishment of care facilities for persons with disabilities
- Participating in the collection and analysis of statistical data on types of impairment
- Dealing with the flow of information
- Ensuring the sound management of the resources at its disposal

50. Organizations of persons with disabilities spared no effort to bring about the Government's ratification of the Convention, through advocacy and awareness-raising. They present a national radio programme called *The Voice of Persons with Disabilities*. This programme raises awareness and informs people about disability issues. It also draws the Government's attention to the problems faced by persons with disabilities and helps to convey the message that disability is not a life sentence. On national television, persons with disabilities participate in programmes on social issues relating to disability. In addition, they organize lecture-discussions, sports events and other activities to raise awareness among all actors involved in disability issues. These activities have begun to yield positive results, as illustrated by the promulgation of Act No. 007/PR/2007 of 9 May 2007 and the ratification of the Convention.

51. Decree No. 136/PR/MCFAS/94 of 6 June 1994 instituted a national day of persons with disabilities throughout the country. Article 3 of the Decree states that the purpose of the National Day of Persons with Disabilities is to help the Government to achieve its objectives and to promote the development of persons with disabilities and their integration into society. It is an opportunity to raise awareness of the Convention among persons with disabilities and other sectors of society.

52. In 2020, the events organized to mark the National Day of Persons with Disabilities centred on the following theme: "Issues and challenges faced by the Government of the Fourth Republic in the implementation of the Convention on the Rights of Persons with Disabilities". In her statement, the Minister for Women, Early Childhood Care and Solidarity called for action to combat discrimination against persons with disabilities. The twenty-seventh National Day of Persons with Disabilities was celebrated on 5 February 2021 in Ati. On that occasion, the theme was as follows: "The impact of the health security measures taken to combat the coronavirus disease (COVID-19) on the lives of persons with disabilities". The event brought together all persons with disabilities from the country's 23 provinces. It was an opportunity for delegations from the depths of the country to come together and to share their experiences in order to foster love and unity within the community of persons with disabilities. A series of activities were carried out during the day, including:

- Lecture-discussions for the dissemination of the various legal texts relating to persons with disabilities
- Screening of a film on the disability process
- Sport (disability football) and awareness-raising on the enrolment of children with disabilities in school and on early marriage
- Exhibition and sale
- Cultural activities

Article 9
Accessibility

53. After ratifying the Convention, the Government quickly began establishing certain programmes. These include the National Development Plan, one of the pillars of which – on improving the quality of life of the population – is specifically targeted at young persons and persons with disabilities, with the goal of ensuring that they have access to productive, decent and sustainable employment. To this end, the Government issued Decree No. 1521/PR/MFPPESN/2019 establishing the terms of application of Act No. 007/PR/2007 of 9 May 2007 on the protection of persons with disabilities.

54. To address the issue of the accessibility of public buildings, the Act provides for solutions for the construction of public buildings that take into account specific accessibility needs. Article 20 of the Act provides that "the State, the autonomous local authorities and public and private bodies are to take the necessary measures to facilitate access for persons with disabilities to public and private buildings and institutions that are open to the public".

55. With regard to access to public transport, although the public transport system is limited, there are some initiatives under way that involve entrusting the management of the system to the N'Djamena city administration.

56. Article 21 of the Decree implementing Act No. 007/PR/2007 of 9 May 2007 on the protection of persons with disabilities provides that during travel, priority in boarding and alighting from transport is to be given to persons with disabilities. Article 22 of the Decree states that public transport agencies must facilitate travel for persons with disabilities by:

- Providing sign language support for persons who are hard of hearing
- Providing information in Braille for persons with visual impairments

57. To ensure that persons with disabilities have access to education, the Government has issued Order No. 377/MEN/DG/95 on the exemption of students with disabilities from enrolment fees. Under article 1 of the Order, "students with disabilities are exempt from enrolment fees in all public educational institutions in Chad".

58. Private educational institutions are required under the Order to reduce tuition fees. Article 2 of the Order provides that "students at private educational institutions who have been certified as having a disability are entitled to a reduction in enrolment fees, at a rate to be determined by the management of the aforementioned institutions".

59. Under article 3 of the Order, articles 1 and 2 also apply to students whose parents have been certified as having a disability. The provisions of the Order have been strengthened by Decree No. 1521/PR/MFPPESN/2019 establishing the terms of application of Act No. 007/PR/2007. With respect to education, article 7 of the Decree provides that "the State shall ensure, without any discrimination, that persons with disabilities receive education and vocational training in mainstream educational institutions or in specialized public or private training institutions, which receive a subsidy". Article 8 of the Decree provides that "the State is to ensure the training of special educators with a view to ensuring that persons with disabilities receive a better education and high-quality training". Article 9 of the Decree provides that: "Children with disabilities and the children of persons with disabilities who are destitute are entitled to free schooling in public primary, secondary, vocational and higher educational institutions and to assistance with educational supplies and materials. The age of entry into the education system may be postponed by two years for children with disabilities."

60. Children with physical disabilities can attend primary, secondary and higher educational institutions. The Government has provided technical support by making special educators and equipment for children with visual or mental impairments available to schools.

61. In N'Djamena, the Centre d'Éducation Spécialisée pour Enfants Retardés, an NGO, provides primary education, covering the first six grades (CP1 to CM2), for persons with intellectual disabilities, including Down syndrome, autism, psychotic disorders and multiple disabilities.

62. Although the Government has not developed care facilities for persons with intellectual disabilities, since 1998, the Centre d'Éducation Spécialisée pour Enfants Retardés has been conducting awareness-raising with a view to helping children with intellectual disabilities integrate into society. Students with a wide range of disabilities, such as Down syndrome, autism, psychotic disorders, cerebral palsy and multiple disabilities, thus benefit from teaching adapted to their needs and abilities.

63. The John Paul II Foundation for the Sahel offers skills development workshops in leatherworking, agriculture and animal husbandry to improve these learners' socioeconomic integration. Another NGO, Cooperazione Internazionale, has also implemented an inclusive education and psychosocial support programme in Lac Province, in partnership with the Ministry of Education.

64. Vocational training falls within the responsibility of the Ministry of Vocational Training and Careers Promotion and the Ministry of Women, the Family and Child Protection. Under article 10 of Decree No. 1521/PR/MFPPESN/2019 establishing the terms of application of Act No. 007/PR/2007, "persons with disabilities holding a national disability card are entitled to priority enrolment in State or autonomous local authority vocational training centres close to their place of residence, provided that they meet the general conditions for recruitment or enrolment in these institutions".

65. To combat discrimination, article 10 of the Decree provides that "the State is to take the necessary measures to enable persons with disabilities to take part in official examinations and competitions on an equitable basis, in particular by ensuring the accessibility of rooms, increasing the time allowed for tests and setting up examination centres adapted to the needs of persons with disabilities". Article 12 of the Decree provides that the State must subsidize specialized vocational training centres for persons with disabilities.

66. The Government has created conditions conducive to the operation of such centres by providing them with specialized trainers. The specialized training centres include the Vocational Training Centre for Young Deaf Persons, which provides training in carpentry and garment-making, and the Coordinating Body for Associations and Groups of Women with Disabilities in Chad, which also provides training in garment-making for young women.

67. With respect to access to employment, persons with disabilities are among the sections of the population that are the worst affected by mass unemployment. The principle of non-discrimination in employment is established in the Labour Code. However, it should be acknowledged that integrating persons with disabilities into the world of employment remains a difficult problem to solve, especially in the private sector.

68. The Decree implementing Act N° 007/PR/2007 establishes guarantees for persons with disabilities in terms of access to employment and self-employment. Article 13 of the Decree provides that: "The State is to ensure, without discrimination, the recruitment into the civil service of persons with disabilities who fulfil the relevant conditions. The age limit for admission to the civil service may be increased by five years for persons with disabilities." The State is obliged to protect persons with disabilities against all forms of exploitation and discriminatory treatment in the performance of their duties. Under article 14 of the Decree, "the State is to take the necessary measures to promote the self-employment of persons with disabilities through their representative organizations, in particular by subsidizing small and medium-sized businesses, providing loan guarantees and easing tax and customs measures".

69. With respect to access to culture, article 14 of the Decree implementing Act No. 007/PR/2007 provides that: "The State is to support persons with disabilities who promote culture and the arts through a framework of services provided by the ministry with responsibility for culture. Persons with disabilities are to receive State support for the production of cultural and artistic works."

70. With regard to access to recreation and sport, article 16 of the Decree implementing Act No. 007/PR/2007 provides explicitly that the State is required to put in place the conditions necessary for persons with disabilities to take part in sporting activities, particularly by:

(a) Encouraging persons with disabilities to play sports by setting up a physical education and sport programme for students with disabilities;

(b) Providing infrastructure and facilities that are adapted to support sports for persons with disabilities;

(c) Holding sports competitions for persons with disabilities;

(d) Supporting the participation of athletes with disabilities in subregional, regional and international competitions.

At the national level, organizations of persons with disabilities have formed the Paralympic Federation, an internationally known federation that conducts sporting activities in a variety of disciplines, including disability football, sitting volleyball and tricycle racing.

71. The Constitution guarantees equality before the law and access to justice. To give effect to these guarantees, a service for the protection of persons with disabilities, displaced persons, refugees and stateless persons has been set up under the Ministry of Justice and Human Rights. Offices for ensuring access to the law and justice have also been established at the various appeals courts to facilitate access for vulnerable groups, including persons with disabilities. The Government has also developed a partnership with Avocats sans frontières (France), an NGO, for the implementation of a project to improve action taken by paralegals to ensure that members of vulnerable populations have access to the law and justice. Similarly, a project to improve access to justice for persons in vulnerable situations was conducted by the Association of Female Jurists of Chad, the Association for the Promotion of Fundamental Freedoms in Chad and the Public Interest Law Center, with the support of the Belgium-based NGO Avocats sans frontières.

72. To date, the Government has spared no effort in providing persons with disabilities with healthcare. Access to healthcare is further strengthened by Decree No. 1521/PR/MFPPESN/2019 establishing the terms of application of Act No. 007/PR/2007. Article 4 of the Decree provides that indigent persons with disabilities holding a national disability card are entitled to medical assistance in the form of exemption from medical expenses for:

(a) Consultations;

(b) Laboratory tests;

(c) Radiography and medical imaging;

(d) Hospitalization;

(e) Medicines purchased at public health facilities.

73. However, any persons with disabilities holding a national disability card who do not have sufficient resources to pay for medical care are entitled to a reduction in fees in accordance with the scale defined by the Ministry of Public Health in collaboration with the ministry with responsibility for social welfare.

Article 10
Right to life

74. Chadian law recognizes that every person has the right to life, which is a fundamental right guaranteed by a number of international instruments. Article 11 of the Transitional Charter provides that the human person is sacred and inviolable and that all individuals have the right to life, the right to integrity of the person and the right to security. Further clarification is provided by article 4 of Act No. 007/PR/2007, which provides that “persons with disabilities enjoy the same rights that are recognized in the Constitution for all Chadian citizens”. Violence to life is also punishable under articles 302–306 of the Criminal Code.

75. To date, no cases of deprivation of life on grounds of disability have been officially recorded in the country.

Article 11
Situations of risk and humanitarian emergencies

76. The effects of climate change have intensified throughout Chad and are characterized by severe pluvial and fluvial flooding, with adverse consequences for the population, including persons with disabilities. This disaster has affected 18 of the 23 provinces, prompting the Government to declare a state of humanitarian emergency on 19 October 2022 and to call on humanitarian organizations and partners to assist it in its efforts to meet the needs of the victims, including persons with disabilities. More than 1 million people, comprising more than 200,000 households, have been affected by the floods.

77. In N'Djamena, the Government, with the support of its partners, has identified informal sites for the relocation of more than 88,590 people, including more than 500 households of persons with disabilities. In the east and centre of the country, 202,476 individuals, comprising 33,684 households, in six provinces have been affected by the floods, including households of persons with disabilities.

78. To strengthen the coordination of the response to the floods, on 24 October 2022, the Government, through the Ministry of Gender and National Solidarity, issued an order on the powers and composition of the coordinating body in charge of managing the reception sites for disaster victims in N'Djamena. Data from organizations of persons with disabilities reveal the following picture:

Province	*Number of persons with disabilities affected*
Mayo-Kebbi-Est	5
Tandjilé	40
Mandoul	100
Moyen-Chari	15
Logone Oriental	25
Ouaddaï	110
Sila	25
Total	**330**

Sites	*Toukra*	*Milézi*	*Koundoul 1*	*Pont Nguéli*	*Eglise Walia*	*Lycée Walia*	*Mandjafa*	*Maradrote Kotoko*	*Karkandjé*	*Kabe*	*Total*
Total households	17 340	6 822	10 272	37 632	852	7 170	420	5 700	882	1 500	88 590
Households of persons with disabilities	25	-	-	-	-	100	-	-	10	-	135

Sites/provinces	*Sila*	*Ouaddaï*	*Batha*	*Ennedi Est*	*Guéra*	*Am-timan*	*Total*
Total households	79 325	4 008	26 466	15 000	65 047	12 630	202 476
Households of persons with disabilities	-	-	-	-	-	-	-

Source: Office for the Coordination of Humanitarian Affairs, October 2022.

79. The flood situation has resulted in the mobilization of all of the country's partners to support site development work, the installation of emergency shelters, water points and latrines, and the provision of hot meals and other food. The healthcare and reproductive health department ensures the timely provision of care to and referral of patients, including persons with disabilities. The partners of Chad have mobilized available resources and some donors have supported the efforts to ensure a rapid response to the needs of disaster victims, especially persons with disabilities.

80. The Government and its partners have developed a flood response plan with a budget of US$ 69,819,435 that takes into account the multisectoral needs of 800,000 flood victims. They have succeeded in raising US$ 10,151,401; the remaining sum of US$ 59,668,034 has yet to be found.

81. Following the declaration of a state of emergency by the Government on 19 October 2022, the humanitarian community decided to request a further Rapid Response grant of US$ 8.8 million from the Central Emergency Response Fund to address the deteriorating situation. Around 200,000 people in the provinces of Lac, Logone Occidental, Chari-Baguirmi and N'Djamena have received support with shelter and essential household items, food security and nutrition, water, hygiene and sanitation, and protection.

82. There are 150 humanitarian partners (including national and international NGOs, the International Red Cross and Red Crescent Movement and United Nations entities) that have the necessary expertise and capacity to work alongside the Government to meet the most urgent needs of people affected by the crisis in Chad, especially members of vulnerable groups and persons with disabilities.

83. United Nations entities and other partners of Chad have built traditional latrines and donated more than 3,030 tents to meet the needs of flood victims, including households of persons with disabilities.

84. The Government made more than 1,200 food kits available to persons with disabilities to support them during the COVID-19 pandemic. It also set up a national awareness-raising committee. A representative for persons with disabilities was appointed to the committee, and a sum of 5 million was allocated to it for specific awareness-raising activities.

85. Ensuring access to care for persons with mental disabilities is a major challenge, as there is a lack of qualified psychiatric personnel and appropriate secure facilities. In Chad, there are no rituals connected with certain groups of persons with disabilities.

86. According to Handicap International, 300,000 people in Chad live under the threat of mines and explosive remnants of war – the legacy of successive conflicts. Furthermore, the current instability on the country's borders is exacerbating an already complex humanitarian situation. More than 4 million people are in need of humanitarian or emergency aid.

87. Since October 2014, the NGO Humanity and Inclusion has been conducting mine-clearance and victim assistance programmes in partnership with the Government to support the country's development. The organization raises awareness of the risks associated with unexploded ordnance and promotes the inclusion of persons with disabilities. It helps to clear land contaminated with mines and explosive remnants of war so that it can be used by local villages. It is experimenting with innovative solutions, such as the use of drones to improve and accelerate these operations. It also provides training for members of the national demining centre and helps to update its procedures.

88. In July 2019, under its mine action programme, which aims to make more land available to people more quickly through the use of new technologies, Humanity and Inclusion raised awareness about the use of drones in humanitarian work among 40 deminers from the National High Commission for Demining and stakeholders in development and demining efforts in Chad. Ten Chadians received training in drone piloting and mapping in Borkou. In February 2021, Humanity and Inclusion presented the Commission with three drones and a mapping screen worth an estimated €23 million.

89. In July 2019, 182 contaminated zones were identified, 86 of which have been cleared. There are reportedly still 43,678 explosive remnants of war to be cleared. A total of 244 casualties of explosive remnants of war were recorded in July 2019. During the clearance

work, there were 87 accidents. A total of 10,165 men, 8,721 women, 8,510 boys and 6,977 girls have received education on the related risks.

90. Humanity and Inclusion trains Chadian physical rehabilitation personnel and is supporting this sector by developing an identification system for persons with disabilities. It is supporting the reopening of the N'Djamena rehabilitation centre and helping organizations of victims and persons with disabilities to defend their rights. In Lac Province, where many people have fled the violence perpetrated by Boko Haram in neighbouring Nigeria, Humanity and Inclusion is working to improve access to education for children with disabilities. Education campaigns on the risks associated with the presence of unexploded ordnance are also conducted with a view to reducing the number of accidents.

91. The organization also sets up income-generating activities and provides social and occupational support to facilitate the socioeconomic integration of vulnerable people, including young persons with disabilities.

92. In situations of armed conflict, humanitarian crisis or natural disaster, all victims receive care free of charge. In addition to such assistance, persons with disabilities are provided with assistive devices.

Article 12
Equal recognition before the law

93. The concern of the international community reflected in this article was taken into account in article 4 of Act No. 007/PR/2007, which provides that "persons with disabilities enjoy the same rights that are recognized in the Constitution for all Chadian citizens". No law authorizes the withdrawal of legal personality in the case of any type of disability, whether physical or mental.

94. The legislation protecting persons with disabilities does not explicitly mention the support and safeguards available to persons with disabilities to help them exercise their legal capacity and manage their financial affairs, or safeguards against the misuse of assisted decision-making models in the event of impairment of a person's mental faculties. However, under the Constitution, in particular the aforementioned article 14 thereof, and article 4 of Act No. 007/PR/2007, in the event that the assistance of a third party is needed to draw up documents enabling the management of day-to-day affairs, use is made of the provisions of the French Civil Code of 1958, which is applicable in Chad pursuant to Legislative Act No. 1 on the Constitution of 31 March 1959 and the section on incapacity of Constitutional Act No. 2/62 of 16 April 1962.

95. The Government has carried out a number of awareness-raising initiatives, including:

- The allocation of airtime in the public media every Monday to inform public opinion and raise awareness through an appropriate programme about the issue of disability, in accordance with article 18 of the Decree implementing Act No. 007/PR/2007.
- The establishment, pursuant to Decree No. 136/PR/MCFAS/94 of 14 June 1994, of the National Day of Persons with Disabilities on 7 February.
- The celebration of the International Day of Persons with Disabilities every 3 December and the conduct of awareness-raising sessions at the start of the school year. At the beginning of the 2020/21 school year, a major awareness-raising campaign was conducted in schools in seven municipalities in N'Djamena and in Koumra.
- The organization of a physical rehabilitation day by the Ministry of Women, the Family and Child Protection (now the Ministry of Gender and National Solidarity) in partnership with Humanity and Inclusion and Action pour la réadaptation au Tchad (Action on Rehabilitation in Chad).

Public awareness campaigns on the issue of disability have been organized in several provinces.

Article 13
Access to justice

96. Article 10 of the Transitional Charter guarantees the equality of citizens before the law in the following terms: “Chadians of both sexes have the same rights and the same duties. They are equal before the law without distinction as to race, origin or religion.” Article 2 of the Code of Civil Procedure provides that all persons have the right to bring proceedings before a competent national court in respect of any act that violates their rights under the Constitution, international conventions and the laws and regulations in force and to use all available legal means to have their cases heard. Persons with disabilities have the right to take legal action subject to the same governing conditions and principles as other persons, whether they do so as victims, offenders or witnesses, or in another capacity.

97. The Government provides training for judicial and prison personnel on respect for human rights, including those of persons with disabilities.

Article 14
Liberty and security of the person

98. Article 11 of the Transitional Charter provides that the human person is inviolable and that all persons have the right to respect for their life, physical and mental integrity and personal identity and to the protection of their private and family life. Under article 25, the freedoms of opinion, expression, conscience and worship are guaranteed, and the conditions for their exercise are to be guaranteed by law.

Article 15
Freedom from torture or cruel, inhuman or degrading treatment or punishment

99. Chadian law protects all citizens without exception from torture and other cruel, inhuman or degrading treatment or punishment. The right to physical integrity is guaranteed by article 13 of the Transitional Charter, which provides that “no citizen may be subjected to degrading or humiliating treatment or to torture”. Chad has also been a Party to the Convention against Torture and Other Cruel, Inhuman or Degrading Treatment or Punishment since 1995. Article 5 of Act No. 028 on the powers, organization and functioning of the National Human Rights Commission mandates the Commission to carry out regular visits to places of detention with a view to preventing torture.

100. The definition of torture contained in article 323 (7) of the Criminal Code is in line with that of the Convention against Torture.

101. Article 18 of the Constitution provides that “no person may be subjected to degrading or humiliating abuse or treatment, or to torture”. In accordance with article 19, “slavery, trafficking in persons, forced labour, torture, psychological or physical violence, inhuman, cruel, degrading and humiliating treatment, female genital mutilation, early marriage and any other form of debasement of human beings are prohibited”. Article 323 of the Criminal Code provides that: “No exceptional circumstances whatsoever, whether a state of war or a threat of war, internal political instability or any other public emergency, may be invoked as a justification of torture. An order from a superior officer or a public authority may not be invoked as a justification of torture.”

Article 16
Freedom from exploitation, violence and abuse

102. The protection of persons with disabilities from all forms of exploitation, violence and abuse is a priority for the Government. Article 320 of the Criminal Code, with a view to preventing torture, provides that any person who is responsible for the abandonment or

neglect of a child or an adult incapable of protecting himself or herself due to his or her physical or psychological condition is to be punished with imprisonment and a fine. The penalty is increased if the abandonment or neglect results in illness, mutilation, loss of the use of a limb, blindness or other disabilities.

103. Moreover, pending the drafting of special legislation protecting persons with disabilities, the provisions of the Transitional Charter (title II, arts. 11–14) enshrine the principle of the inviolability of the human person and the prohibition of torture, cruel, inhuman and degrading treatment, and arbitrary arrest and detention.

104. The Directorate for the Advancement of Persons with Disabilities of the Ministry of Gender and National Solidarity is taking measures, in partnership with Humanity and Inclusion and Action pour la réadaptation physique au Tchad, to enable persons with disabilities to have access to effective recovery, rehabilitation and social reintegration services and programmes.

Article 17
Protecting the integrity of the person

105. General national provisions on the protection of the physical integrity of the person apply equally to persons with disabilities. Under article 3 of Decree No. 1438/PR/PM/MSP/2015 of 18 June 2015 on the Code of Medical Ethics, all doctors are required to treat all patients with the same diligence, regardless of their condition, nationality, religion, reputation, or any feelings they might inspire.

106. Doctors must obtain the free and informed consent of the person concerned before administering any treatment or carrying out any medical procedures. The person concerned takes decisions concerning his or her health together with the health professional on the basis of the information and recommendations that the health professional provides. Health professionals are bound to respect the wishes of the person concerned and may not perform any procedure or treatment without his or her consent, except in extreme emergencies.

107. Abortion is penalized under article 356 of the Criminal Code and article 35 of the Decree on the Code of Medical Ethics. However, therapeutic abortion may be performed if it is the only way to save the mother’s life. In such cases, the doctor must seek the advice of a colleague. In localities where there is only one doctor and where the advice of a colleague cannot easily be obtained, the decision to perform a therapeutic abortion is left to the discretion of the attending doctor, who is responsible for immediately forwarding a detailed report to the Medical Council.

108. Regarding the matter of methods of contraception, article 3 of Act No. 006/PR/2002 of 15 April 2002 on the promotion of reproductive health provides that “all individuals are equal in rights and dignity with regard to reproductive health, without any discrimination based on age, sex, wealth, religion, ethnicity, marital status or any other situation”. Under article 6 of the Act, every individual and every couple have the right to information, education and the necessary resources regarding the advantages, risks and effectiveness of all birth control methods.

Article 18
Liberty of movement and nationality

109. The Transitional Charter provides that all persons have the right to move freely, without any discrimination based on physical condition, and the right to choose their place of residence. Article 20 of the Charter provides that “all Chadians have the right to move freely within the national territory and to leave and re-enter the country”.

110. Foreign nationals lawfully admitted to the country enjoy the same rights and freedoms as Chadian nationals under national laws and regulations. The guarantee of equality set out in the Transitional Charter requires the State to ensure that men and women, but more generally all individuals, without discrimination, have equal access to all the civil and political rights protected by the Convention.

111. On 4 February 2022, the transitional authorities in Chad authorized persons with disabilities to cross the Chad-Cameroon border, which had been closed for a number of years as a security measure. This measure was lifted to ensure free movement within the Economic and Monetary Community of Central Africa.

112. The question of nationality is governed by the 1962 Ordinance on the Nationality Code, which provides that all children born in Chad automatically acquire Chadian nationality at birth, and that children acquire Chadian nationality from one of their parents without discrimination on grounds of sex. The registration of events related to civil status is free. Original documents are issued free of charge. All births that take place in the country must be reported to the civil registry office of the place of birth within one month of the date of birth.

Article 19
Living independently and being included in the community

113. In accordance with the National Poverty Reduction Strategy, which was adopted in June 2003 and revised in 2008, the Government is resolutely committed to combating poverty and achieving the Sustainable Development Goals. It has implemented national development plans for 2003–2015 and 2017–2021 in order to reduce poverty in various areas, including health, education and infrastructure, and to modernize agriculture and promote access to drinking water and decent food.

114. Since 2016, Chad has been piloting a social safety net project to provide direct assistance to 15,000 poor and vulnerable households in rural and urban areas in three provinces of the country (Logone Occidental, Bahr el-Gazel and an outlying district of N'Djamena). The Project for Women's Empowerment and the Demographic Dividend in the Sahel, which includes a component related to reducing women's poverty through income-generating activities and microcredit, is also being implemented.

Article 20
Personal mobility

115. Most road infrastructure still lacks features that support the mobility of persons with disabilities, including accessible indicators and street signage. However, some public and private buildings provide parking spaces, ramps and accessible restrooms for persons with disabilities.

116. Association de la Maison Notre Dame de la Paix de Moundou is a centre for functional rehabilitation, orthotic and prosthetic services and reintegration, with a staff of about 32 permanent professionals and a capacity of 77 beds. Some 35,000 patients receive care there, and approximately 20,000 assistive devices have been produced, including canes, tricycles, orthoses and prostheses.

Assistive devices provided by the Kabalaye Orthotics, Prosthetics and Rehabilitation Centre, 2018–2020

Type of device	*2018*	*2019*	*2020*	*2021*	*Total*
Canes and crutches	363	364	220	397	1 344
Tricycles	0	0	55	0	55
Orthoses	164	175	111	162	612
Prostheses	192	218	120	194	724

Source: Kabalaye Orthotics, Prosthetics and Rehabilitation Centre, statistical data 2018–2021.

117. The orthopaedics department at the Kabalaye Orthotics, Prosthetics and Rehabilitation Centre has workshops for the manufacture of prostheses, orthoses, crutches, tricycles and other devices. The physiotherapy department focuses primarily on functional rehabilitation, massage therapy and care for persons with various deformities.

Physiotherapy patients at the Kabalaye Orthotics, Prosthetics and Rehabilitation Centre, 2018–2020

Patients	*2018*	*2019*	*2020*	*Total*
Men aged 18 or over	468	482	383	1 333
Women aged 18 or over	392	396	286	1 074
Boys aged 17 or under	435	458	364	1 257
Girls aged 17 or under	376	364	331	1 071
Total	**1 671**	**1 700**	**1 364**	**4 735**

Source: Kabalaye Orthotics, Prosthetics and Rehabilitation Centre, statistical data 2018–2020.

118. With support from Qatar Charity, the Government has provided more than 41 motorized tricycles to employed persons with disabilities. In addition, the Turkish Cooperation and Coordination Agency and Mission Évangélique contre la Lèpre have supplied over 50 hand-powered tricycles to persons with disabilities.

119. With support from the Turkish Cooperation and Coordination Agency, the Government has built a training and production centre for modern tricycles for persons with disabilities.

120. The Kabalaye Orthotics, Prosthetics and Rehabilitation Centre received support from the Project to Support Demining, Development and Social Protection for Vulnerable Persons. Thanks to this project, and to the Centre's own social services, the cost of prostheses for indigent persons has been reduced from CFAF 150,000 to CFAF 50,000. Despite this assistance, the Centre's orthopaedic device manufacturing equipment has not been replaced since it opened in 1981. There is also an urgent need for additional personnel, as the staff is ageing. To help meet training needs, three students received physiotherapy scholarships with support from Action Handicap Réadaptation Tchad. It should be noted that this is the only centre in Central Africa providing orthotic, prosthetic and rehabilitation services, yet it faces significant operational challenges.

Article 21
Freedom of expression and opinion, and access to information

121. The Transitional Charter incorporates the provisions of the Convention on the Rights of Persons with Disabilities. Several measures have been introduced to strengthen freedom of expression and opinion. These measures include the establishment of the High Authority for Media and Broadcasting, the national media regulatory body.

122. The measures also include the establishment of the Media House, a space for communication professionals to meet and collaborate. There are also professional groups such as the Association of Community and Private Radio Stations, the Association of Private-Press Publishers and the Association of Arabic-speaking Journalists. The national media landscape includes both public and private outlets, which offer persons with disabilities opportunities to make their voices heard. This extends to informational websites, particularly online newspapers, which have expanded significantly in recent years.

123. In relation to freedom of expression, it is also important to note the growth of new information and communication technologies, a rapidly expanding sector that plays a major role in communication. The liberalization of the electronic communications market has allowed two mobile telephony operators, Airtel and TIGO, to enter the sector.

Article 22
Respect for privacy

124. Article 19 of the Transitional Charter guarantees the inviolability of the home and the confidentiality of correspondence for all persons without discrimination. Under article 429 of the Criminal Code, any person who fraudulently gains or attempts to gain access to all or part of a computer system is liable to face a term of imprisonment of 1 to 5 years and a fine of CFAF 1 million to CFAF 10 million. The same penalties apply to anyone who fraudulently obtains or attempts to obtain any benefit for themselves or for another by entering a computer system. Article 438 of the Criminal Code provides that any person who, even through negligence, carries out or causes the processing of personal data without having complied with the prior formalities required under the personal data law shall be liable to face a term of imprisonment of 1 to 5 years, a fine of CFAF 1 million to CFAF 10 million, or one of these penalties only. The Criminal Code thus protects persons with disabilities by safeguarding the confidentiality of personal information related to their health and rehabilitation.

Article 23
Respect for the home and the family

125. Article 11 of the Transitional Charter guarantees all Chadians of both sexes, without distinction, respect for the right to life, personal identity and the protection of privacy and family life.

126. Act No. 06/PR/2002 of 15 April 2002 on the promotion of reproductive health and its implementing decree No. 2121/PR/2020 of 14 October 2020 place particular emphasis on raising awareness among healthcare providers regarding the care of persons with disabilities in the field of reproductive health, as well as on literacy training in national languages. The National Development Plan 2017–2021 marks an important step in the Government's efforts to improve the situation of persons with disabilities, as it includes a component on enhancing quality of life and specifically addresses the social protection of vulnerable persons, with the aim of ensuring access to productive, decent and sustainable employment.

127. Through the project to improve the quality of life and promote the inclusion of children and young persons with disabilities and vulnerable persons in Chad, and with support from the French Development Agency, the Government aims to enhance inclusion and quality of life for persons with disabilities by reducing barriers to access to services, social participation and economic development in the country.

128. The establishment of the Ministry of Gender and National Solidarity and of the Ministry of Youth, Sports, Leisure, Leadership and Entrepreneurship reflects the Government's clear commitment to developing programmes to combat poverty and, in particular, to improving the living conditions of women and young people. A dedicated department for combating poverty and social exclusion has been created. This department has launched a microcredit programme for the most disadvantaged segments of the Chadian population, including persons with disabilities.

129. In its "Vision 2030: The Chad We Want" policy and its first National Development Plan, covering the period 2017–2021, the Government has taken due account of the needs of persons with disabilities. These efforts will help to create opportunities that enable persons with disabilities to fulfil their parental responsibilities.

130. Article 12 of the Constitution guarantees freedoms and rights for all citizens and article 14 affirms their equality before the law without distinction based on race, sex, religion, political opinion or social status.

131. In Chad, the concealment, abandonment, neglect and segregation of children in general, and of children with disabilities in particular, are addressed in the draft children's code currently in the process of adoption.

132. The institutional placement of boys and girls with disabilities, as well as their care within the family or in a family or community setting, remains a challenge. However, a

number of public and private structures provide services for children in vulnerable situations, in particular children with disabilities, including the National Centre for the Rehabilitation of Vulnerable Children, Fondation Dieu Béni, Fondation d'Amour pour la Formation des Enfants en Détresse, Centre Béthanie, Centre Yalna and Association pour la Réinsertion des Enfants et la Défense des Droits de l'Homme.

133. Article 11 of the Transitional Charter sets out the principle of the inviolability and sanctity of the human person. Accordingly, chapters II, III and IV of title IV of the Criminal Code, along with Act No. 06/PR/2002 of 15 April 2002, prohibit sterilization practices.

134. The formal establishment of the National Human Rights Commission in the Constitution and its reform under Act No. 028/PR/2018 of 22 November 2018 reflect a commitment to protecting and promoting the rights of persons with disabilities. One of the Commission's mandates is to provide the Government with opinions on human rights issues, including the situation of women, the rights of children and the rights of persons with disabilities. It operates independently under article 173, which states that: "The National Human Rights Commission is autonomous in selecting the issues it examines on its own initiative. It is entirely free in the opinions it delivers to the President of the Republic and disseminates to the public."

Article 24
Education

135. In Chad, particular focus is placed on the education of persons with disabilities. Under article 38 of the Constitution, every citizen has the right to education. Basic public education is secular and free of charge. Article 40 further provides that: "The State and the autonomous local authorities shall establish the conditions and institutions that ensure and guarantee children's education and the advancement of gender equality and persons with disabilities."

136. The Government also adopted Act No. 016/PR/2006 establishing the framework for the Chadian education system. Persons with disabilities receive the same instruction as other learners, although further efforts are needed to ensure that they have access to appropriate specialized educational support. Article 12 of Act No. 007/PR/2007 on the protection of persons with disabilities provides that: "The State and the decentralized local authorities shall establish or support specialized vocational training institutions for persons with disabilities." Furthermore, under articles 7 and 9 of Decree No. 1521/PR/MFPPESN/2019 of 11 September 2019, the State must ensure, without discrimination, that persons with disabilities receive education and vocational training in mainstream educational institutions or in specialized public or private training institutions, which receive a subsidy.

137. To ensure that persons with disabilities have access to education, the Government issued Order No. 377/MEN/DG/95 on the exemption of students with disabilities from enrolment fees. Under article 1 of the Order, "pupils and students with disabilities are exempt from enrolment fees in all public educational institutions in Chad". Private educational institutions are required under the Order to reduce tuition fees for such students. Article 2 of the Order provides that: "Students at private educational institutions who have been certified as having a disability are entitled to a reduction in enrolment fees at a rate to be determined by the management of the aforementioned institutions."

Education Statistical Yearbook 2019/20: Children with disabilities by school status

School status	*Boys*	*Girls*	*Total*
Public	2 960	2 115	5 075
Community	1 613	1 213	2 826
Private	694	413	1 107
Secular	329	193	522
Catholic	109	70	172

School status	*Boys*	*Girls*	*Total*
Islamic	17	18	35
Protestant	239	132	371
Total	**5 267**	**3 741**	**9 008**

Education Statistical Yearbook 2019/20: Children with disabilities by setting

Setting	*Boys*	*Girls*	*Total*
Urban	1 793	1 160	2 973
Rural	3 474	2 561	6 035
Total	**5 267**	**3 741**	**9 008**

138. Under article 3 of the Order, the provisions of articles 1 and 2 also apply to pupils and students with a parent who has been certified as having a disability. The Order has been complemented by Decree No. 1521/PR/MFPPESN/2019 establishing the terms of application of Act No. 007/PR/2007. Article 7 of the Decree provides that "the State shall ensure, without any discrimination, that persons with disabilities receive education and vocational training in mainstream educational institutions or in specialized public or private educational institutions, which receive a subsidy". Article 8 provides that "the State is to ensure the training of special educators with a view to ensuring that persons with disabilities receive a better education and high-quality training". Article 9 provides that: "Children with disabilities and the children of persons with disabilities who are destitute are entitled to free schooling in public primary, secondary, vocational and higher educational institutions and to assistance with educational supplies and materials. The age of entry into the education system may be postponed by two years for children with disabilities."

139. Article 369 of the Criminal Code imposes a fine ranging from CFAF 50,000 to CFAF 500,000 on any parent who refuses to enrol their child in school. This provision applies without exception.

140. The Directorate for Inclusive Education has been established within the Ministry of Education to address the education of persons with disabilities in a targeted manner. The existence of the Directorate for the Advancement of Persons with Disabilities likewise reflects the Government's commitment to addressing disability-related issues.

141. Children with physical disabilities can attend primary, secondary and higher educational institutions. The Government has provided technical support by making special educators and equipment for children with visual or mental impairments available to schools.

142. In N'Djamena, the Centre d'Éducation Spécialisée pour Enfants Retardés, an NGO, provides primary education, covering the first six grades (CP1 to CM2), for persons with mental impairments, including Down syndrome, autism, psychotic disorders and multiple disabilities.

143. The Government does not have its own facilities for the care of persons with mental impairments. However, since 1998, the Centre d'Éducation Spécialisée pour Enfants Retardés has been carrying out awareness-raising activities to help children with mental impairments find their place in society. Students with a wide range of disabilities (such as Down syndrome, autism, psychotic disorders, cerebral palsy and multiple disabilities) thus benefit from teaching adapted to their needs and abilities.

144. With support from the Ministry of Economy, Development Planning and International Cooperation, Mission Évangélique contre la Lèpre has opened a school for children with visual impairments, provides support to such children from primary school through university and provides care for children with physical disabilities.

145. Fondation LILIANE and Maison Notre Dame de la Paix de Moundou provide support to persons with all types of disabilities in the areas of education and vocational training.

146. Protestant churches in Chad have established schools for children with hearing impairments in N'Djamena, Moundou, Doba and Sarh.

147. The Government has made significant efforts to address mobility issues in the construction of some public buildings. Nonetheless, this remains a major challenge. Although some private entities provide related services, there are no public institutions dedicated to this area.

148. To address the need for accessibility in public buildings, Act No. 007/PR/2007 sets standards for the construction of public buildings that take into account specific accessibility needs. Article 32 provides that: "The State and the decentralized local authorities, as well as public and private enterprises and institutions, shall work to make adaptations to the environment and to communication and information systems and to facilitate the movement of persons with disabilities and their access to services. Indoor and outdoor parking areas attached to public and private buildings open to the public shall be arranged in such a way as to reserve spaces for means of transport used by persons with disabilities."

149. Under article 39 of the Constitution, the State is responsible for promoting and developing general, technical and vocational public education. Vocational training falls within the remit of the Ministry of Vocational Training and Careers Promotion and the Ministry of Women, the Family and Child Protection, through the intermediary of the National Women's Centre, which does noteworthy work in providing specialized training for women with disabilities. There is also substantial support from specialized private vocational training centres.

Article 25
Health

150. With regard to adolescent health, several laws, along with a number of strategic guidance documents, comprise the legislative and regulatory framework for the health sector in Chad:

- Act No. 024/PR/2000 of 24 November 2000 on pharmacy
- Act No. 06/PR/2002 on the promotion of reproductive health
- Act No. 19/PR/2020 on the protection of persons living with HIV/AIDS and sexually transmitted infections
- Order No. 356/PR/PM/MSP/SE/SG/GGSU/2013 of 11 March 2013, which provides for free maternal and child healthcare at the primary level
- National Road Map for Reducing Maternal, Newborn and Child Mortality 2009–2015
- National Road Map for Reducing the Burden of Leprosy and Sustaining its Elimination in Chad 2013–2017
- Comprehensive Multi-Year Plan for the Expanded Programme on Immunization 2013–2017
- National Strategic Plan for the HIV/AIDS Response 2012–2015 and the Prevention of Mother-to-Child Transmission Plan 2012–2015
- Strategic Plan for the National Tuberculosis Control Programme 2009–2013
- Strategic Plan for the Elimination of Onchocerciasis and Lymphatic Filariasis 2013–2015

151. To address the challenge of ensuring access to healthcare for all, the Government, with support from technical and financial partners, has built, revitalized and rehabilitated a number of health facilities, including the Mother and Child Hospital, and provides initial and continuing training for health personnel. More than 100 pharmacists have completed their training. In 2019, 1,600 health workers, including 577 doctors, were recruited.

152. Chad provides the healthcare services required for screening and early intervention for persons with disabilities, including children, through national immunization days and

prenatal and postnatal consultations. Articles 10 and 11 of Act No. 007/PR/2007 provide that "the care of persons with congenital disabilities begins at birth" and that "disability is treated under the same conditions for adults and children, at whatever stage it occurs".

Disability rate by age bracket and sex

(Percentage)

Sociodemographic characteristics	*Disability rate (at least one disability)*
Age bracket:	
4 years or under	0.8
5–14 years	2.0
15–24 years	2.5
25–49 years	3.6
50 years or over	16.2
Sex:	
Male	3.7
Female	3.2
Total	3.5

Source: Demographic and health survey and multiple indicator cluster survey 2014–2015, p. 300.

153. With regard to access to health insurance and other forms of insurance, the Government adopted Act No. 035/PR/2019 on 5 August 2019, establishing universal health coverage in Chad. The Act is based on the principles of national solidarity, equity, risk pooling, efficiency and non-discrimination. It covers the following three systems:

- Employees' Health Insurance, which is contributory and covers salaried workers in the public, semi-public and private sectors.
- Self-Employed Workers' Health Insurance, which is contributory and covers all self-employed workers engaged in commerce, professional services, craft and agriculture.
- Medical Assistance, which is aimed at persons on low incomes. The implementing decrees for Act No. 035/PR/2019 are awaiting signature.

154. With regard to measures taken to ensure accessible communication, persons with disabilities enjoy the right to information and communication. Public media outlets grant them free airtime to inform and raise public awareness through appropriate programmes. This right is recognized under article 19 of the aforementioned Act No. 007/PR/2007.

Article 26
Habilitation and rehabilitation

155. The Government established the National Orthotics, Prosthetics and Rehabilitation Centre to support persons with disabilities through mobility assistance. Unfortunately, the Centre is not currently providing the services for which it was created, as it faces organizational difficulties.

156. Despite this challenge, a number of private facilities remain in operation, including the Kabalaye Orthotics, Prosthetics and Rehabilitation Centre, managed by Secours Catholique au Développement and founded in 1981 to meet the rehabilitation needs of victims of the 1979 conflict.

157. In partnership with the Government, the NGO Handicap Santé has organized orthopaedic and plastic surgery clinics in Moundou for children with physical disabilities receiving care from Maison Notre Dame de la Paix de Moundou. A total of 4,099 persons were operated on between 1982 and 2017. A further 195 persons with disabilities received surgical treatment from Handicap Santé in 2019.

158. The National Union of Associations of Persons with Disabilities of Chad is a network of organizations of persons with disabilities encompassing all categories of disability, including physical impairments, sensory impairments (including hearing and visual impairments), mental impairments and leprosy. It was established on 13 January 1996 through the concerted initiative of organizations of persons with disabilities and received authorization to operate from the Ministry of Territorial Administration under Folio No. 2466 of 27 November 2006.

159. An ideal forum for consultation and action, the National Union of Associations of Persons with Disabilities of Chad is a network open to external collaboration that carries out concrete activities to strengthen its members. Its aim is to bring together individuals and institutions that recognize that persons with disabilities do not live in a separate world but are an integral part of society and the community. It is a member of the Central African Federation of Associations of Persons with Disabilities, for which it serves as the secretariat. There are functional rehabilitation facilities that provide physiotherapy and prosthetic and orthotic services (and, to a lesser extent, ergonomic support) for persons with disabilities. However, they are few in number and mainly located in N'Djamena and Moundou: the National Orthotics, Prosthetics and Rehabilitation Centre, the Kabalaye Orthotics, Prosthetics and Rehabilitation Centre and Association de la Maison Notre Dame de la Paix de Moundou.

160. Chad, like other countries around the world, marked Rehabilitation Day on Tuesday 30 March 2021, organizing its first national workshop on the subject. All stakeholders were represented, including technical and financial partners, the ministry responsible for the relevant planning, the National Assembly, NGOs, civil society and organizations of persons with disabilities.

161. Chad celebrated the first ever Inclusion Day, on the theme of "Challenges and Issues relating to Physical Rehabilitation in Chad", with support from the NGO Humanity and Inclusion. This was an important day, as Chad remains among the countries where health indicators, particularly those related to rehabilitation, reflect insufficient progress. Through this event, the Directorate for Persons with Disabilities sought to take an important step in addressing the challenges surrounding the inclusion of persons with disabilities in Chad.

162. International cooperation on the exchange of assistive technologies has been strengthened through partnerships between the Government and international NGOs such as Humanity and Inclusion, as well as with the French Development Agency and United Nations agencies.

Article 27
Work and employment

163. The legislation of Chad not only guarantees the population access to public employment but also upholds the principle of equal pay for men and women performing the same work. Article 31 of the Constitution provides that: "Access to public employment is guaranteed to every Chadian without discrimination, subject to the specific requirements of each post." Furthermore, article 32 provides that: "The State recognizes the right to work for all citizens. It guarantees workers fair remuneration for their services or production. No one may be disadvantaged on the basis of origin, opinions, beliefs, sex or marital status."

164. Article 5 of Act No. 17/PR/2001 establishing the General Civil Service Regulations provides that: "Access to public employment is open by equal right, without distinction on the basis of gender, religion, origin, race, opinion or social position, to any Chadian who meets the conditions laid down in title IV of the present Act, subject to conditions of physical and mental ability or the specific requirements of certain functions defined by particular statutes." Access to employment is likewise guaranteed under articles 13 and 14 of the implementing decree of Act No. 007/PR/2007. In 2012, the Government carried out a campaign to recruit graduates with disabilities into the civil service, appointing them according to their qualification level.

165. Work in the private sector is governed by Act No. 038/PR/1996 establishing the Labour Code of the Republic of Chad.

166. Subsequently, the State carried out a general salary revaluation in both the public and private sectors. In this context, the priority sectors of health and education received special status arrangements granting allowances and bonuses. Workers in the private sector also saw improvements in their wages. For example, the intertrade minimum wage rose from CFAF 25,400 to CFAF 60,000, an increase of 0.41 per cent, as of 21 January 2011 under Decree No. 55/PR/PM/MFPT/2011.

167. In 2014, the Government adopted the National Employment and Vocational Training Policy, which addresses discrimination in employment and affirms the right to equal pay for work of equal value.

168. Article 341 of the current Criminal Code criminalizes all acts of harassment without exception, including those committed against persons with disabilities.

169. Act No. 012/PR/2018 on gender parity in elections and appointments to office in Chad addresses employment disparities between men and women, including those affecting persons with disabilities.

170. Articles 36 and 37 of the Transitional Charter grant trade union rights to all persons who wish to exercise them, including persons with disabilities.

171. The General Civil Service Regulations Act and the Labour Code establish the same guarantees that protect the rights of workers, including those with disabilities, who are victims of workplace accidents, and both laws uphold the principle of non-discrimination in employment and vocational training.

172. In the area of employment and vocational training, the Government has adopted a national policy and a project on employment that take due account of the needs of persons with disabilities, namely, the National Employment and Vocational Training Policy 2014 and the National Policy Project to Combat Unemployment, adopted by the Council of Ministers in 2019. The principle of non-discrimination in employment is established in the Labour Code. The Government protects persons with disabilities from all forms of exploitation and discriminatory treatment in the performance of their duties.

173. As an exceptional measure, the Government has recruited more than 40 persons with disabilities, across all categories, into the civil service.

174. Through the National Office for the Promotion of Employment, the Government supports initiatives benefiting persons with disabilities by financing income-generating activities with funds ranging from CFAF 1 million to CFAF 5 million. In October 2021, for example, 70 persons with disabilities received training in micro-business management.

Article 28
Standard of living and social protection

175. The Government has taken significant steps to address the question of standard of living and social protection and has undertaken a number of fundamental structural reforms in that regard, including through the following:

- Water Code, enacted under Act No. 016/PR/99 of 18 August 1999, which serves as a framework law for the sector.
- Water and Sanitation Master Plan, adopted in April 2003, which serves as the relevant policy and strategy framework through 2020.
- National Water Laboratory.
- Chadian Water Company.
- In relation to the management of transboundary waters, membership of the Niger Basin Authority and the Lake Chad Basin Commission.

- National Strategy for Water, Sanitation and Hygiene in Schools 2018–2030, which is aimed at improving overall access to safe drinking water and sanitation. These efforts have led to significant improvements in the rates of access to drinking water and sanitation, which rose from 53 per cent to 61.78 per cent and from 7 per cent to 18 per cent, respectively, as at 31 December 2017. According to the Sustainable Development Goals Report 2018, the rate of access rose from 65 per cent to 66.5 per cent in 2021. In addition, in accordance with article 3 of Ordinance No. 004/PR/2020 establishing the National Solidarity Fund for Vulnerable Persons, assistance is being provided to vulnerable persons to facilitate their access to water, energy, healthcare and housing.

176. Despite the Government's efforts to increase communities' level of access to sanitation, the sector remains the weak link in the national policy on the issue. A World Bank report[1] on the water and sanitation sector in Chad estimated that the rate of access to sanitation in 2017 was only 18 per cent, while the country has committed to achieving a rate of 60 per cent by 2030 under the Sustainable Development Goals.

177. Sanitation services are generally provided in hospitals and communes. To facilitate access to safe drinking water and adequate sanitation infrastructure and thereby safeguard public health, with support from the Drinking Water Supply Project, the Government has installed 15,987 hand-pump wells and 703 water towers.

178. The right to social security is set out in Act No. 17/PR/2001 establishing the General Civil Service Regulations. The Labour Code likewise affirms this right in title II, on occupational health and safety, in particular chapter I on hygiene and safety (arts. 224 et seq.) and chapter II on occupational health (arts. 239 et seq.). The relevant provisions of the Collective Agreement on the Right to Social Security also apply.

179. The National Social Security Fund administers social protection for private sector employees and State contract workers. Under article 318 of the Social Security Code, the covered contingencies include: the pensions scheme, which covers old age and disability; the family benefits scheme, which covers contingencies related to the birth of a child into a worker's household; and the employment injury scheme, which covers workplace accidents and occupational diseases. The National Pension Fund administers pensions for civil servants in the public administration, as well as members of the military and paramilitary services. Health insurance is available through private insurance companies; however, enrolment in these schemes remains limited, and incentives are needed to promote mutual insurance arrangements.

180. The socioeconomic inclusion project to promote the inclusion of children and young persons with disabilities and vulnerable persons in Chad has provided support to:

- 132 recipients of social safety support
- 400 recipients of income-generating activity support
- 400 recipients of training
- 400 recipients of individualized social support
- 20 groups receiving support as village associations or credit groups

181. Improving access to adequate housing for as many households as possible remains a government priority. Through the Urban Development and Housing Improvement Project, the Government had planned to service three urban zones to produce 6,000 developed plots, 60 per cent of which were to be sold to low- and middle-income households. Unfortunately, this project could not be launched owing to the economic, financial and health crisis caused by COVID-19.

182. Following the drop in global oil prices around 2015, the Government adopted measures to raise awareness of the link between poverty and disability as part of its efforts to combat poverty. The measures were provided for in the National Development Plan 2017–2021, which served as a key programming and development tool. A resource-mobilization

[1] Chad Water and Sanitation Sector Note (June 2019).

forum was held in Paris to secure funding from technical and financial partners for its implementation.

Article 29
Participation in political and public life

183. Article 34 of the Transitional Charter guarantees all adult Chadian citizens, including persons with disabilities, the full enjoyment of their civil and political rights. Moreover, the Government ratified the International Covenant on Civil and Political Rights on 9 June 1995, granting every citizen the right to enjoy civil and political rights in full and without discrimination.

184. The right to vote is a constitutional right guaranteed to all citizens under article 34 of the Transitional Charter. Persons with disabilities may be assisted by a person of their choice in exercising their civic rights. Act No. 033/PR/2019 of 22 July 2019 establishing the Electoral Code, as amended by Act No. 045/PR/2019 of 31 December 2019, governs the electoral system.

185. With regard to political representation, persons with disabilities were represented in the Government from 2013 to 2015 by a minister in charge of the department of communication.

186. In the current legislature, one member of the National Assembly has a visual impairment. Organizations of persons with disabilities are also represented in the Economic, Social, Cultural and Environmental Council.

187. The measures in place to ensure the accessibility of electoral procedures, premises and materials are limited to those already required under the Constitution and the Electoral Code.

188. The National Union of Associations of Persons with Disabilities of Chad, established on 13 January 1996, is a network of organizations of persons with disabilities encompassing all categories of disability. Its aim is to bring together individuals and institutions that recognize that persons with disabilities do not live in a separate world but are an integral part of society and the community. It is a member of the Central African Federation of Associations of Persons with Disabilities.

Article 30
Participation in cultural life, recreation, leisure and sport

189. In keeping with its commitment to fostering the creative, artistic and intellectual potential of persons with disabilities, the Government established the National Day of Persons with Disabilities under Decree No. 136/PR/MCFAS/94. The day is a national expression of solidarity with persons with disabilities.

190. Act No. 007/PR/2007 provides that persons with disabilities must be integrated into sociocultural activities and be able to participate on an equal footing with others. Accordingly, they are entitled to benefits that contribute to upholding this principle and to training in areas such as music, theatre and sports.

191. There is a paralympic federation for persons with disabilities, which includes several disciplines such as disability football, sitting volleyball and para-powerlifting.

192. The Federation organizes sporting competitions in N’Djamena and outside the capital on the International Day of Persons with Disabilities and its athletes also take part in international events, in which they have even won awards. Its athletes will participate in the Tokyo 2021 Olympic Games.

193. There are five special recreational, leisure and sports centres in N’Djamena: the Centre for Intellectually Retarded Children in the Paris Congo neighbourhood; the Centre for Persons with Hearing Impairments in the Kabalaye neighbourhood; the Centre for Persons with Hearing Impairments in the Ardebdjoumal neighbourhood; the Centre for Persons with

Disabilities in the Ambassatna neighbourhood; and the Centre for Persons with Hearing Impairments in the Walia neighbourhood.

194. Although these centres are privately run, the State provides them with substantial support in the form of educational staff.

Article 31
Statistics and data collection

195. The number of persons with disabilities in each province, disaggregated by sex, in 2022 is as follows:

Province	*Men*	*Women*	*Total*
Batha	2 495	2 824	5 319
Borkou	1 036	766	1 802
Chari-Baguirmi	4 357	3 756	8 113
Guéra	4 085	4 286	8 371
Hadjer Lamis	3 855	3 433	7 288
Kanem	1 887	1 843	3 730
Lac	1 678	1 453	3 131
Logone Occidental	8 917	7 296	16 213
Logone Oriental	9 000	8 242	17 242
Mandoul	10 103	8 676	18 779
Mayo-Kebbi-Est	7 273	5 738	13 011
Mayo-Kebbi-Ouest	5 236	4 215	9 452
Moyen-Chari	8 005	6 113	14 119
Ouaddaï	5 190	5 108	10 298
Salamat	2 224	2 242	4 467
Tandjilé	7 608	6 403	14 011
Wadi Fira	3 271	3 143	6 413
N’Djamena	10 147	6 793	16 941
Barh El Gazal	1 583	1 180	2 763
Ennedi Ouest	336	241	577
Sila	1 855	1 612	3 467
Tibesti	374	213	587
Ennedi Est	999	717	1 716
Chad	101 517	86 294	187 810

Source: National Institute of Statistics for Economic and Demographic Studies, 2022.

196. In Chad, the processing of personal data is regulated by Act No. 07/PR/2015 of 10 February 2015 on the protection of personal data, Act No. 14/PR/2014 of 21 March 2014 on electronic communications and Decree No. 075/PR/2019 laying down the implementing arrangements for Act No. 14/PR/2014.

Article 32
International cooperation

197. The overall human rights situation is regularly assessed through the submission of initial and periodic reports, as well as alternative reports prepared by NGOs and civil society organizations. The universal periodic review provides an opportunity for constructive dialogue with the Human Rights Council, and the human rights situation is also examined by

the human rights treaty bodies and by special procedure mandate holders in their reports after country visits. In 2018, Chad submitted its report for the third cycle of its interactive dialogue with the Human Rights Council. Following the resulting review, the Human Rights Council made 204 recommendations, of which 195 were accepted, including the recommendation to ratify the Convention on the Rights of Persons with Disabilities, and 9 were noted.

198. In addition, the Government extended a standing invitation to all special procedure mandate holders on 12 June 2012. As a result, the country has received two visits, one by the Working Group on the issue of discrimination against women in law and in practice in December 2017 and one by the Working Group on the use of mercenaries as a means of violating human rights and impeding the exercise of the right of peoples to self-determination in April 2018. During the current cycle, the country plans to request visits by the Special Rapporteur on the rights to freedom of peaceful assembly and of association, the Special Rapporteur on the independence of judges and lawyers and the Special Rapporteur on the human right to a clean, healthy and sustainable environment.

Article 33
National implementation and monitoring

199. The Government monitors matters related to the implementation of the Convention at the national level through its ministries responsible for gender and national solidarity, youth and justice and their technical departments dedicated to disability-related issues. To ensure compliance with the Convention, the Government has begun the process of establishing a monitoring committee.

200. To demonstrate its political will and address the many concerns raised by the International Coordinating Committee of National Human Rights Institutions, the Government has taken steps to reform the National Human Rights Commission. These steps led to the inclusion of the Commission among the country's key institutions and the adoption of Act No. 28/PR/2018 of 22 November 2018 on the powers, organization and functioning of the Commission. The commissioners have been elected and appointed in accordance with the provisions of the aforementioned Act. The Commission now meets the requirements of the Paris Principles and enjoys financial autonomy and administrative independence.

201. Decree No. 4954/PCMT/PMT/MJCDH/2022 of 3 June 2022 establishing an interministerial committee to monitor the implementation of international human rights instruments and prepare reports for the human rights treaty bodies reflects the Government's commitment to preparing such reports and to monitoring the reporting cycle.

202. The National Gender Policy 2017 follows this same approach by incorporating disability-related issues and taking due account of the rights of persons with disabilities.